

		disclosing Plaintiff's Covid-19 vaccination status at a luncheon. However, a party to a communication may testify as to its content (even if the party recorded the communication in violation of the Act) so long as there is no independent duty to maintain the confidence (e.g., attorney-client privilege). (Frio, supra, 203 Cal.App.3d at p. 1495.) If Plaintiff's testimony as to the content of the communication is not excluded, then case law does not support the use of the recorded video for impeachment purposes. (Frio, supra, 203 Cal.App.3d at pp. 1497–1499, “The permissibility of the use of writings obtained in violation of section 632 for impeachment depends upon whether the tape recorded party has been successful in asserting the evidentiary sanction. If Frio, the tape recording party, is allowed to state a present independent recollection of a communication, there is no need also to use the tainted evidence to impeach. If Frio's testimony has been excluded under section 632, the tape recorded party may not also use the evidentiary sanction as a license to lie.”) The Motion for a Protective Order is GRANTED. The Court excludes the July 15, 2021 recorded conversation between Plaintiff and Dr. Dennin from use at Dr. Dennin's deposition. If needed, the Court will address its use at trial at a later date. Defendants are ordered to serve notice of this ruling.
59	<i>Vision En Analisis Y Estrategia, S.A. De C.V. et al. vs.</i>	Plaintiffs Vision En Analisis Y Estrategia, S.A. De C.V. and Capitaliza-T, Sociedad De Responsabilidad Limitada De Capital Variable's unopposed Motion for Leave to File Executed

	<i>Christopher R. Irwin et al.</i>	Version of Third Amended Complaint is GRANTED. Plaintiffs move, under CCP sections 473 and 576, for an order allowing them to file an executed version of their third amended complaint, which was previously filed on 9/5/25 (ROA 171). The amendment would correct the lack of signature on the prior version of the pleading. The Court finds Plaintiffs have complied with the requirements of Rule 3.1324 and that it is in the interests of justice to allow the amendment. (Code Civ. Proc. § 473, subd. (a)(1); see also Code Civ. Proc., § 576.) Plaintiffs shall file and serve the executed version of their Third Amended Complaint within 15 days from the date of this order. Plaintiffs are also ordered to serve notice of this ruling.
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